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REGISTRATION GUIDE SERIES

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ODPC Registration for Property and Real Estate Businesses

*A sector guide to registration, dense identity-document files,
and biometric estate access for estate agents, property
managers, developers and land transactions in Kenya.*



PROPERTY & REAL ESTATE · ODPC REGISTRATION · BIOMETRIC ACCESS · CCTV

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A Sector Guide for Estate Agents, Property Managers, Developers and Land Transactions in Kenya

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KENYA PRIVACY LAW REVIEW · REGISTRATION GUIDE SERIES

ODPC Registration for Property and Real Estate Businesses

A sector guide for estate agents, property managers, developers and land transactions in Kenya.

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AT A GLANCE

- “Property management including the selling of land” is a mandatory ODPC registration category **regardless of turnover or staff numbers** — no small-business exemption is available.
- A single land sale or tenancy agreement routinely generates a dense file of identity documents — national ID, KRA PIN, passport photographs, bank statements — most agencies retain **indefinitely** in paper form.
- Biometric access control and CCTV are now standard in gated developments, and both are separately governed by dedicated ODPC guidance requiring explicit notice and proportionality.
- Property managers frequently act as a **processor** for the landlord's tenant relationship while simultaneously being a **controller** for their own business's client and marketing data — the two roles are commonly conflated.
- **No** published ODPC enforcement action against a Kenyan property or estate management business could be identified at the time of writing — a gap worth closing ahead of, rather than after, the sector draws regulatory attention.

01 Introduction

Kenya's property sector spans individual estate agents and letting agencies, property and estate management companies running gated developments, and developers marketing and selling units or serviced plots — much of it to a diaspora client base transacting remotely. Each stage of a property relationship generates personal data: identity and financial documents for a purchase or tenancy, ongoing tenant and landlord records for a managed property, and, in a growing number of developments, biometric and CCTV data for estate access and security. The Data Protection Act, 2019 (“the Act”) requires each of these businesses to register with the ODPC as a data controller, and separately requires anyone processing that data on another's behalf — a managing agent instructed by a landlord, for instance — to register as a processor. This Guide sets out that obligation for the sector, with particular attention to the data protection risks that are distinctive to how Kenyan property transactions and estate management actually operate.

02 The Legal and Regulatory Framework

The registration obligation arises from section 18 of the Act, given operational effect by the Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 (Legal Notice No. 207 of 2021) (“the Registration Regulations”), which took effect on 14 July 2022. Property and land transactions independently generate personal data obligations under the Land Registration Act, 2012, the Land Control Act, and county land administration processes — none of which displace the Act's requirements, and all of which add to the volume of identity documentation a property business holds. Where a development deploys biometric access control or CCTV, the ODPC's guidance notes on biometric data and on private security processing set out additional, specific expectations addressed in section 10 below.

03 Why Registration Is Mandatory for This Sector

The Registration Regulations exempt data controllers and processors with an annual turnover below KES 5,000,000 and fewer than ten employees from mandatory registration — but only where the entity does not fall within a list of sectors the Regulations treat as inherently higher-risk regardless of size. “Property management including the selling of land” is one of those sectors, alongside hospitality, financial services and several others. Unlike a general technology business, where the registration question genuinely turns on a

threshold test, a property or estate management business does not reach that question at all — the sector itself removes the exemption.

PRACTICAL INSIGHT

A sole-proprietor letting agency with two staff and a single managed apartment block must register, as must a developer marketing a single estate for sale. Neither can point to turnover or headcount as a basis for exemption — the activity itself is what matters.

04 Controller, Processor — or Both?

The controller/processor analysis in this sector depends on the nature of the instruction. A property or estate management company managing a building on a landlord's behalf — collecting rent, handling maintenance requests, maintaining tenant records — is ordinarily a data processor in respect of that landlord's tenant relationship, since it acts on the landlord's instructions. The same company is a data controller in its own right for its own business's data: its prospective client and lead database, its marketing lists, and its own staff records. An estate agency brokering a sale or letting is ordinarily a controller for the buyer, seller, and prospective client data it collects directly. A developer is a controller for the buyer and purchaser data generated by a sale. Businesses in this sector frequently register only the controller role that matches their public-facing brand, and omit a processor role that exists in parallel — for example, where a managing agent processes tenant data strictly on a landlord's instructions.

05 Registration Tiers and Fees

Private-sector data controllers and processors are classified into three tiers based on annual turnover and employee numbers.

Tier	Size Criteria	Registration Fee (once-off)
Micro & Small	1–50 employees; turnover up to KES 5,000,000	KES 4,000
Medium	51–99 employees; turnover KES 5,000,001–50,000,000	KES 16,000

Tier	Size Criteria	Registration Fee (once-off)
Large	More than 99 employees; turnover above KES 50,000,000	KES 40,000
Public / Charitable or Faith-Based Entities	Regardless of turnover or staff numbers	KES 4,000

A certificate of registration is valid for 24 months from the date of issue and must be renewed at least 30 days before expiry; renewal fees are lower than initial registration fees (currently KES 2,000 for Micro & Small, KES 9,000 for Medium, and KES 25,000 for Large). Where a business registers as both controller and processor, both certificates must be tracked and renewed independently.

06 Information the ODPC Will Expect to See

Beyond basic establishment details — a certificate of incorporation or business registration and a KRA PIN — a complete application requires a clear and internally consistent description of the business's data processing activities:

- **Categories of data subjects processed** — landlords, tenants, buyers, sellers, guarantors, prospective clients or leads, estate visitors, and, for managed developments, staff and contracted service providers.
- **Categories of personal data processed** — identification and KYC documents (national ID, KRA PIN, passport photographs), financial data (bank statements, proof of income), and, where deployed, biometric access data and CCTV footage.
- **The specific purposes** for which data is processed — tenancy or sale transaction management, statutory compliance (stamp duty, Land Control Board consent, KRA reporting), estate security and access control, and marketing should be distinguished rather than bundled into a single generic purpose.
- **Recipients** to whom data is disclosed — advocates handling conveyancing, banks or lenders financing a purchase, county land registries, the Kenya Revenue Authority, Land Control Boards, co-brokering agents, and, where engaged, third-party security firms operating CCTV or access control.
- **Any transfer of data outside Kenya** — relevant wherever a business serves diaspora clients remotely, or uses an offshore-hosted CRM or property-listing platform.

- **The safeguards in place** — physical file security for paper-based identity documents, access controls on any digital CRM or listing database, and the specific safeguards applicable to biometric or CCTV systems in use.

07 Where Property and Real Estate Businesses Get It Wrong

In our experience, the following gaps are the ones most likely to trigger a correction on application, and the ones most likely to matter if the sector's current lack of a public enforcement record changes.

COMMON MISTAKE — INCOMPLETE DATA INVENTORY

Listing “clients” as a single category without separately identifying landlords, tenants, buyers, sellers and guarantors — each of whom sits in a different relationship to the business and is owed a different privacy notice.

COMMON MISTAKE — INDEFINITE RETENTION OF PAPER IDENTITY FILES

Land-transaction and tenancy files routinely contain certified copies of national identity documents, KRA PINs and bank statements, and are frequently retained indefinitely with no documented retention or disposal policy — a gap that predates digital record-keeping and is often overlooked precisely because the files are physical rather than digital.

COMMON MISTAKE — BIOMETRIC ACCESS CONTROL WITHOUT NOTICE OR ASSESSMENT

Deploying fingerprint or other biometric access control for a gated development without the explicit privacy notice the ODPC's Guidance Note on Biometric Data requires, and without assessing whether a Data Protection Impact Assessment is warranted — large-scale biometric processing is one of the DPIA triggers the ODPC has identified.

COMMON MISTAKE — CCTV WITHOUT PROPORTIONALITY OR SIGNAGE

Operating estate or building CCTV without the proportionality assessment, signage, and designated contact person the ODPC's guidance for private security and surveillance processing sets out — requirements that apply to the estate operator even where a third-party security firm supplies the system.

COMMON MISTAKE — CONFLATING THE PROCESSOR ROLE WITH THE CONTROLLER ROLE

Registering only as a controller for the business's own marketing and client data, while omitting a processor role that exists in parallel wherever the business manages a property strictly on a landlord's instructions.

COMMON MISTAKE — UNDISCLOSED CROSS-BORDER CLIENT VERIFICATION

Serving diaspora clients through video verification calls, offshore-hosted CRM tools, or international payment processing, without disclosing the cross-border element in the registration application. This overlaps with, and should be read alongside, the firm's Practice Note on Cross-Border Data Transfers (KPLR/PN/003/2026).

08 Step by Step: Registration and Responding to a Correction Notice

- Prepare the data inventory and supporting documents set out in section 6 above before opening the online application.
- Submit the application through the ODPC's online portal and pay the applicable tier fee.
- Where the Data Commissioner is satisfied, a certificate of registration is issued within 14 days of a complete submission.
- Where the Data Commissioner is not satisfied, a written refusal notice is issued within 21 days, setting out the specific reasons for rejection.
- A rejected applicant may cure the identified deficiencies and make a fresh application — this attracts a new registration fee.
- Once issued, the certificate is valid for 24 months and must be renewed at least 30 days before expiry.
- Any material change in the business's particulars after registration — a change of managed portfolio, ownership, or processing activity such as adding biometric access control — must be notified to the ODPC in writing within 14 days of the change.

09 Beyond Registration: Related Compliance Obligations

Registration is a threshold obligation, not a complete compliance programme. Property and real estate businesses should, in parallel, address the following:

- **Appointment of a Data Protection Officer**, required where the business processes personal data at scale or conducts systematic monitoring of data subjects — a threshold most estate management companies operating CCTV or biometric access across a large development are likely to meet.
- **A Data Protection Impact Assessment** before deploying biometric access control at scale, consistent with the ODPC's own guidance identifying large-scale biometric processing as a DPIA trigger.
- **A clear privacy notice** for tenants, buyers and estate residents covering identity documentation, biometric access data where used, and CCTV.
- **Written data processing agreements** with managing agents, security firms, and any CRM or listing-platform vendor.
- **A documented retention and disposal policy** for land-transaction and tenancy files, addressing both physical and digital records.
- **A breach-response procedure** calibrated to the Act's notification timelines — notification to the ODPC without undue delay and within the statutory window, with prompt processor-to-controller notification where a vendor or managing agent is involved.

10 Regulatory Spotlight: Biometric Access and CCTV

ODPC GUIDANCE ON BIOMETRIC DATA AND PRIVATE SECURITY PROCESSING

No published ODPC enforcement determination against a Kenyan property, estate management, or letting business could be identified in preparing this Guide. That should not be read as a low-risk sector: the ODPC has issued dedicated guidance addressing exactly the processing activities most gated developments and managed estates now carry out routinely.

The ODPC's Guidance Note on Biometric Data confirms that biometric data — including fingerprints used for estate or building access — falls within the Act's definition of sensitive personal data, requiring an explicit privacy notice covering its collection and use, and specific safeguards for its storage and correction. The ODPC's draft Guidance Note for Private Security similarly sets out, through a worked illustration involving a security company's use of CCTV, that camera surveillance must be proportionate to an identified risk, that individuals must be informed CCTV is in use, and that a contact person must be made available for questions — obligations that apply to an estate operator using CCTV for its compound, not only to a licensed security firm.

Relevance to registration. An estate or property manager that has rolled out biometric gate access or CCTV without addressing either of these guidance notes is very likely to find the gap surfacing in its registration application's safeguards section — and, on the ODPC's current enforcement trajectory in other sectors, is a plausible candidate for the sector's first published determination.

11 Practical Compliance Checklist

BEFORE YOU APPLY

- ☒ Confirmed the business's correct tier by cross-checking staff numbers and turnover against filed accounts and payroll records.
- ☒ Confirmed the business's controller/processor scope, distinguishing managed-property processor arrangements from the business's own controller-role client and marketing data.
- ☒ Prepared a complete data inventory: landlords, tenants, buyers, sellers, guarantors and leads, each stated separately.
- ☒ Documented specific technical and organisational safeguards, including for any biometric or CCTV system in use.

- ☒ Identified all recipients, including advocates, lenders, county land registries, KRA, and any third-party security provider.
- ☒ Identified any cross-border element — diaspora client verification, offshore CRM or listing platforms — and prepared to disclose it.

AFTER YOU APPLY

- ☒ Diarised the 14-day review window and the 21-day refusal-notice window.
- ☒ If a correction or refusal notice is received, addressed every point raised before resubmitting.
- ☒ Diarised the 24-month certificate expiry and the 30-day renewal deadline.
- ☒ Established a process to notify the ODPC within 14 days of any material change, including the addition of biometric or CCTV systems.

ONGOING

- ☒ Issued a privacy notice covering biometric access data and CCTV to tenants and estate residents.
- ☒ Assessed whether biometric access control at scale warrants a Data Protection Impact Assessment.
- ☒ Put in place a documented retention and disposal policy for land-transaction and tenancy identity documents.
- ☒ Executed data processing agreements with managing agents, security firms and CRM vendors.
- ☒ Established a breach-response procedure with statutory ODPC notification timelines built in.

12 Conclusion

For a Kenyan property or real estate business, ODPC registration is not discretionary and cannot be avoided on the grounds of size — the sector's mandatory status is as unconditional as it is for a hospital or a SACCO. What sets this sector apart today is timing rather than risk: it holds some of the densest identity-document files and, increasingly, the most routine biometric processing of any small-business sector in Kenya, without yet having produced a public enforcement record to match. Businesses that treat their data inventory, retention practices, and biometric or CCTV notices with the same rigour now that other sectors have been required to adopt after enforcement will be ahead of, rather than reacting to, the ODPC's attention when it arrives.

KEY TAKEAWAYS

- “Property management including the selling of land” is a mandatory ODPC registration category **regardless of turnover or staff numbers** — no small-business exemption is available.
- A single land sale or tenancy agreement routinely generates a dense file of identity documents — national ID, KRA PIN, passport photographs, bank statements — most agencies retain **indefinitely** in paper form.
- Biometric access control and CCTV are now standard in gated developments, and both are separately governed by dedicated ODPC guidance requiring explicit notice and proportionality.
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AUTHOR'S PERSPECTIVE

This is the first Guide in the series where the absence of a published case is itself the most useful data point we can offer a client. A sector holding this much identity documentation and rolling out biometric access control this quickly, with zero public enforcement history, is not a sector with no risk — it is a sector the ODPC has not gotten to yet. Advising clients here feels less like responding to a known enforcement pattern, and more like helping them get ahead of one before it exists.

How We Can Help. We advise estate agencies, property management companies, developers and letting agents on registration strategy, biometric and CCTV compliance, and the retention policies land-transaction files require. If any part of this Guide describes your business, we would be glad to talk it through with you.

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